

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

**COMPLAINANT’S COMBINED MOTION FOR LEAVE TO FILE REPLY OUT
OF TIME AND TO ACCEPT CONSOLIDATED OVER-LENGTH REPLY; OR,
IN THE ALTERNATIVE, FOR LEAVE TO FILE 3 SEPARATE CONFORMING
RESPONSES**

Complainant FormuKleen, Inc. (“FormuKleen”) respectfully moves, pursuant to 46 C.F.R. §§ 502.12 and 502.102(b) for leave; (1) to accept its Reply in Support of Motion for Summary Judgment filed August 15, 2025 nunc pro tunc, and (2) to accept that reply as filed notwithstanding page limitations because it consolidates in a single PDF, responses to three separate filings by Respondent. In the alternative, if the Presiding Officer prefers strict page discipline, FormuKleen requests leave to file within two court days a conforming separate response to each filing by Respondent.

Procedural Background and Dates

- **July 16, 2025:** FormuKleen files its Motion for Summary Judgment.

- **July 31st, 2025:** The Presiding Officer grants Respondent a five-day enlargement over FormuKleen’s vigorous objection.
- **August 6, 2025:** Respondent files: (1) its opposition; and also (2) a freestanding “Statement of Facts”; and (3) a “Response to Complainant’s Statement of Material Facts.”
- **Week of August 11, 2025:** Initial-Order discovery-service milestones come due.
- **August 15, 2025:** FormuKleen files its consolidated reply.
- **August 18, 2025:** The Court disallows the reply as untimely/over-length and invites a motion for leave by August 22, 2025.

ARGUMENTS

1. The Prior Enlargement Prejudiced Complainant; The Longer Reply Reflects Necessary Consolidation for The Commission’s Convenience

A. FormuKleen previously warned that granting Respondent five additional days would compress Complainant’s reply window and cause prejudice.

That is exactly what occurred. The enlargement pushed Respondent’s opposition into the same narrow period when Complainant was required (by Order) to serve discovery and simultaneously respond to three separate Respondent filings: the opposition, a freestanding Statement of Facts, and a Response to Complainant’s Statement of Material Facts. Meeting that protocol for two additional papers in the same week necessarily increased the time and pages required for a complete reply.

Additionally, Respondent’s opposition improperly injected threshold jurisdiction and other purely legal issues that do not bear on whether any material fact is genuinely disputed, forcing Complainant to address extraneous matters (to preserve its rights, not because the arguments are valid)

and materially increasing the workload within the compressed time-frame. The schedule was further tightened by a separate FMC lengthy-filing deadline in another matter, which the Commission had been advised of. Extending Respondent did not “help” Complainant by giving more time; it moved the opposition into a period already committed by rule and by other fixed deadlines; precisely the prejudice Complainant forecast.

B. The page count of Complainant’s filing is the product of consolidation, not gamesmanship.

Rather than burden the docket with three separate PDFs that would require the Presiding Officer to toggle among (1) a legal reply, (2) a paragraph-by-paragraph response to Respondent’s Statement of Facts, and (3) a response to Respondent’s responses to Complainant’s facts, FormuKleen submitted one paginated document. That choice reduces docket clutter and eases review, but it necessarily increases the length of the single file. Several pages are non-argument (the certificate of service and two invoices cited in the text).

2. Additional Grounds

The three-day variance caused no disruption to the schedule and created no prejudice; it simply reflects the compressed window that resulted once Respondent’s enlarged opposition landed and the Complainant’s response had to be applied to three separate submissions. Accepting Complainant’s reply as untimely restores parity with the prior enlargement and promotes efficiency because Complainant consolidated three filings into one for the Commission’s ease of review. If the Presiding Officer prefers strict page limits, Complainant will, within two court days, file conforming separate documents without altering the substance or citations.

The Commission's Rules vest the Presiding Officer with authority to manage filings. Under 46 C.F.R. § 502.102(b), a late filing may be accepted when "exceptional circumstances are shown or as justice may require." The five-day enlargement granted to Respondent, over Complainant's objection, compressed the reply window and required consolidation of responses to three separate filings. To serve the interests of justice, ensure parity with the prior enlargement, and provide a complete, single record for review, Complainant respectfully asks that the reply be accepted. Additionally, 46 C.F.R. § 502.12 and Fed. R. Civ. P. 6(b)(1)(B) allow relief where timing rules would otherwise bar consideration. Even if the Commission applies an "excusable neglect" analysis, the factors favor acceptance here: the variance is three days, the reason is court-created compression following Respondent's enlargement, and there is no prejudice to Respondent.

Requested Relief

FormuKleen respectfully asks that the Presiding Officer:

1. Grant leave to accept Complainant's August 15, 2025 Reply nunc pro tunc, as a consolidated filing responding to Respondent's three submissions.
2. Accept the reply as filed notwithstanding page limits because it consolidates materials for the convenience of the Commission and Presiding Officer; or, in the alternative,
3. Grant leave for FormuKleen to file within two court days a conforming three separate responses to Respondent's three separate filings.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 08/19/2025

CERTIFICATE OF SERVICE

I certify that on August 19th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

Daniel W. Raab, Esq.

Attorney for Respondent

9555 North Kendall Drive Suite 210

Miami, Florida 33176

Telephone: 305-598-5517

Email: raabdaniel57@gmail.com